DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, MID-ATLANTIC
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J&A No. ML-26-23
CON/041

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

The contracting activity is Naval Facilities Engineering Systems Command, Mid-Atlantic (NAVFAC MIDLANT)

2. Description of the Action Being Approved.

This Justification and Approval (J&A) authorizes the use of brand name specifications for a Vertical Lifting Fabric Door (VLFD) from manufacturer ASSA ABLOY in Solicitation N4008525R2639, P222 MQ-25 Aircraft Laydown Facilities, Naval Station Norfolk, Norfolk, Virginia.

3. Description of Supplies/Services.

The intent of solicitation N4008525R2639 Design-Bid-Build, P-222, MQ-25 Aircraft Laydown Facilities Naval Station Norfolk, Norfolk, Virginia is to construct a two-story annex to support existing high bay hangar facility, Building LP48. Annex will consist of 01 and 02 spaces constructed of reinforced concrete masonry unit (CMU) walls and a combination of masonry and metal panel veneer. Annex spaces will include maintenance shops, secured storage spaces, Unmanned Carrier Aviation Mission Control System (UMCS) spaces, Weapons Training Unit (WTU) operational trainer and applied instruction space, Aerial Refueling Storage (ARS) Workcenter with overhead bridge crane, mission equipment support areas and other equipment rooms and personnel support areas. Telecommunications rooms and secure areas will meet ICD 705 requirements and have various levels of RF shielding.

The solicitation includes the requirements to repair the existing VLFD in order to regain functionality to the existing door. The solicitation will include brand name specifications for a Vertical Lifting Fabric Door (VLFD) from manufacturer ASSA ABLOY.

This acquisition will solicit proposals as an unrestricted full and open, stand-alone construction solicitation as authorized by the approved DD2579 on 25 April 2025. The estimated value of the work included in the construction solicitation is approximately [redacted] of which [redacted] is estimated for the Vertical Lifting Fabric Doors (VLFD). The project will be funded by FY24 Military Construction (MILCON) funds. The work under this contract is required to be completed within 1017 days after award.

4. Statutory Authority Permitting Other Than Full and Open Competition.

Per DFARS 211.14(c)(2) and in accordance with section 888(a) of the National Defense Authorization Act for Fiscal Year 2017 (Pub. L. 114-328), the justification and approval addressed in FAR 6.303 is required in order to use brand name or equal descriptions. The statutory authority for this acquisition permitting other than full and open competition is 10 U.S.C. 3204(a)(1) which permits the use of limited suppliers when it is essential to the Government's requirements, as implemented by FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

The projects scope includes repairs to an existing Vertical Lift Fabric Door (VLFD) at existing Hangar LP48. The existing VLFD is a "Megadoor" product which is a subsidiary company of ASSA ABLOY. Repairs are needed to regain functionality to the existing door. Because the existing VLFD is an ASSA ABLOY "Megadoor", subsequently, the repairs will need to be compatible with the existing assembly in place at Hangar LP48. Since the scope of this project entails "repairs" versus "replacement", the use of the door products and systems provided by ASSA ABLOY are essential for this project.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A sources sought notice was published on Sam.gov on 22 December 2025 detailing the requirements of the Vertical Lifting Fabric Door. The notice sought commercially available products that could meet the same requirements. The response date was 06 January 2026, and no responses were received.

A solicitation notice will be publicized on SAM.gov, in accordance with the requirements of FAR Part 5. The approved J&A will also be made publicly available as required by FAR 6.305.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer will determine that the price for this acquisition is fair and reasonable in accordance with FAR Part 15 prior to contract award. Analysis will be performed by one or more of the following techniques: (1) Comparison of proposed prices received in response to the RFP; (2) Comparison of proposed prices with the Independent Government Cost Estimate (IGCE); (3) Comparison of proposed prices with available historical information; and/or (4) Comparison of market survey results. The fair and reasonable determination will be made based on the total price of the project. This proprietary item is not an individual line-item price in the solicitation.

8. Actions to Remove Barriers to Future Competition

For the reasons set forth in Paragraph 5, NAVFAC Mid-Atlantic has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NAVFAC Mid-Atlantic will assess whether competition for future requirements is feasible.

[redacted]